IN THE DISTRICT COURT OF APPEAL OF FLORIDA
THIRD DISTRICT

CASE NO.: 3D2025-2197
LT. CASE NO.: 2021-016952 CA 10

ARKADY KANE and ADA KANE,
Plaintiffs/Appellants,

vs.

EDWARD ORJUELA TAYLOR and ASCENDANT COMMERCIAL INSURANCE, INC.,
Defendants/Appellees.

On Appeal from the Circuit Court of the 11TH Judicial Circuit in and for Miami-Dade County, Florida

ANSWER BRIEF OF APPELLEES, EDWARD ORJUELA TAYLOR AND ASCENDANT COMMERCIAL INSURANCE, INC.

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INTRODUCTION

Herein, the parties shall be referred to as they stood in the proceedings below (i.e., as "Plaintiffs" and "Defendants") and/or by their names.[1]

The underlying action arises out of a motor vehicle accident; ARKADY KANE made claims for personal injury, and ADA KANE (his wife) made claims for loss of consortium. Defendants—EDWARD ORJUELA TAYLOR and ASCENDANT COMMERCIAL INSURANCE, INC.—file this joint answer brief seeking affirmance of the amended final judgment. This Court should affirm because (i) the trial court correctly denied Plaintiffs' motion for a directed verdict on the issue of permanency, (ii) the trial court correctly denied Plaintiffs' motion for a new trial because the jury's verdict on permanency accorded with the evidence, (iii) the trial court correctly instructed the jury to consider EDWARD ORJUELA TAYLOR's financial resources in making a punitive damages award, (iv) the trial court did not abuse its discretion in declining to give a special jury instruction on compensatory damages, and (v) the trial court correctly denied Plaintiffs' motion for a new trial because the challenged remarks made in closing argument do not constitute fundamental error.

[1]All references to the Record on Appeal are herein designated "ROA," followed by the appropriate page number(s) and, if applicable, the paragraph or line number(s). All references to the first and second supplements to the Record on Appeal (filed on February 4, 2026, and May 12, 2026, respectively) are herein designated "Suppl. ROA," followed by the appropriate page number(s) and, if applicable, the paragraph or line number(s); the page numbers correspond to the bates stamping.

STATEMENT OF THE CASE AND FACTS

A. Background

The underlying lawsuit involves a claim for personal injuries arising out of a motor vehicle accident which occurred on May 15, 2021. [See ROA at 309-16.] The collision involved vehicles driven by EDWARD ORJUELA TAYLOR and ARKADY KANE. [*See id.*]

At the time of the accident, ARKADY KANE operated a 2019 Chevrolet Suburban in the course and scope of his employment with Miami Unique Limousine, Inc. [See ROA at 311, ¶ 12; Suppl. ROA at 345:10-12.] The 2019 Chevrolet Suburban was covered under an automobile insurance policy (Policy No. FH-23570-5) issued by ASCENDANT COMMERCIAL INSURANCE, INC. to Miami Unique Limousine, Inc. [See ROA at 133-94.] The policy is hereinafter referred to as "the Ascendant Policy."

Notably, the Ascendant Policy afforded uninsured motorist coverage. [See ROA at 171-75.] For purposes of uninsured motorist coverage, ARKADY KANE was an "insured" under the Ascendant Policy because he was occupying a covered auto at the time of the motor vehicle accident. [See ROA at 171-72.]

Significantly, the plain language of the Ascendant Policy contained an exclusion which stated that uninsured motorist coverage did not extend to pain and suffering in the absence of a permanent injury:

> C. Exclusions
>
> This insurance does not apply to:
>
> …
>
> 4. "Bodily injury" sustained by:

…

> d. Any "insured" with respect to damages for pain, suffering, mental anguish or inconvenience unless the "bodily injury" consists in whole or in part of:
>
> (1) Significant and permanent loss of an important bodily function;
>
> (2) Permanent injury within a reasonable degree of medical probability, other than scarring or disfigurement;
>
> (3) Significant and permanent scarring or disfigurement; or
>
> (4) Death.
>
> [ROA at 172 (emphasis in original).]

On or about July 9, 2021, Plaintiffs filed their Complaint against Defendants. [ROA at 29-34.] Therein, ARKANDY KANE sought to hold EDWARD ORJUELA TAYLOR liable for negligence, and he sought to recover uninsured motorist benefits from ASCENDANT COMMERCIAL INSURANCE, INC. [*See id.*] Additionally, ADA KANE made a claim against Defendants for loss of consortium. [See ROA at 33-34.]

On or about May 23, 2024, Plaintiffs filed their Amended Complaint,[2] in which ARKADY KANE added a claim for punitive damages against EDWARD ORJUELA TAYLOR; the punitive damages claim was predicated on EDWARD ORJUELA TAYLOR's intoxication at the time of the motor vehicle accident. [See ROA at 309-16.] Ahead of trial, EDWARD ORJUELA TAYLOR stipulated to negligence and to his blood alcohol level exceeding

[2]After a hearing upon Plaintiffs' motion for leave to amend, the Amended Complaint was deemed filed as of June 27, 2024. [See ROA at 345-46.]

0.08 at the time of the accident. [See ROA at 443, ¶ 3.] Hence, the case proceeded to a trial on damages and permanency of injury.

B. The issue of permanency of injury

i. Trial evidence regarding the nature of ARKADY KANE's injury

At trial, Plaintiffs' expert physiatrist, Marissa McCarthy, M.D., testified that ARKADY KANE "has what's called traumatic arthropathy or a traumatic arthritis." [Suppl. ROA at 511:1-2.] In addition to opining that ARKADY KANE has traumatic arthritis, Dr. McCarthy opined that the subject motor vehicle accident caused the traumatic arthritis; she testified that traumatic arthritis can be secondary to a bone fracture, and it develops as "a breakdown of the cartilage around the bone area that can lead to pain." [Suppl. ROA at 511:3-5.] Dr. McCarthy testified that ARKADY KANE's purported traumatic arthritis is permanent because his symptoms have lasted longer than six months. [Suppl. ROA at 511:17-512:6.]

Dr. McCarthy further testified that scar tissue forms on bones after a break:

> Q. Is there scar tissue created on the bones as a result of the healing?
>
> A. Yes.
>
> Q. Is that scar tissue permanent?
>
> A. Yes.
>
> Q. Have you reached that opinion within a reasonable degree of medical probability?
>
> A. Yes.
>
> [Suppl. ROA at 516:18-25.]

When asked whether ARKADY KANE had significant scarring, Dr. McCarthy did not answer in the affirmative. Instead, she was equivocal and stated that it was possible that the scarring was significant:

> Q. Would you consider that scar tissue on the back to be permanent?
>
> A. Yes.
>
> Q. Are those injuries, are those – sorry, is that scarring significant?
>
> A. It can be.
>
> Q. And the same question as to the hips, the scarring on the bones, is that scarring significant?
>
> A. It also can be.
>
> [Suppl. ROA at 526:21-527:4.]

On cross-examination, Dr. McCarthy conceded that she is not an orthopedist. [Suppl. ROA at 528:11-13.] She also testified that she has never reviewed any radiological imaging in this case:

> [Q.] Have you looked at the actual films in this case?
>
> A. No.
>
> [Suppl. ROA at 538:11-13.]

Additionally, Dr. McCarthy did not dispute that diagnosing traumatic arthritis involves reviewing radiological imaging:

> [Q.] And the imaging would be the best way to see it, wouldn't it?
>
> A. Again, you look at the person as a whole. And it is the history provided, their complaint of symptoms, imaging and laboratory results.
>
> [Suppl. ROA at 540:6-10.]

Nevertheless, not only did Dr. McCarthy fail to review ARKADY KANE's imaging, but she did not ask him to get updated imaging for her review, and she did not ask any of his treating providers about their opinions regarding traumatic arthritis:

> [Q.] I'm asking, in the year that you've seen Mr. Kane, did you ever ask to get X-rays if you're trying to evaluate the level of arthritis that's present?
>
> A. I did not ask him.
>
> Q. Did you speak to the treating physicians about their opinions, who actually saw the imaging and saw Mr. Kane in treatment, about their opinions about traumatic arthritis?
>
> A. No.
>
> [Suppl. ROA at 540:19-541:3.]

Moreover, when Dr. McCarthy performed her physical examination of ARKADY KANE in July 2024, he had normal range of motion, had normal sensation, and lacked pain:

> Q. One of the things that you did with either your own hands or a medical device was palpate Mr. Kane's entire spine from the base of his head all the way down to his tailbone, correct?
>
> A. Correct.
>
> Q. And there was no pain response elicited at all, correct?
>
> A. Correct.
>
> Q. So you actually laid hands on Mr. Kane from the top of his head all the way down to his tailbone. And when you did that, you found no pain?
>
> A. Correct.
>
> Q. He also had a completely normal neurologic exam, correct?
>
> A. Yes.

Q. He had full and normal strength in his arms, his legs, correct?

A. Correct.

Q. His reflexes were completely normal?

A. Yes.

Q. And his sensation was completely normal?

A. Yes.

Q. The only abnormality that you found was minimal decreased flexion; is that right?

A. He was limited in flexion.

Q. And flexion is what?

A. Bending forward.

Q. Bending forward. He had no problems bending backward, turning side to side, moving side to side, raising his arms, moving his legs. And when you tested the strength, it was all completely normal, correct?

A. Correct.

[Suppl. ROA at 546:12-547:21.]

ARKADY KANE even reported to Dr. McCarthy that he was actively going to the gym on a daily basis:

Q. And when you saw Mr. Kane in July of 2024, he told you that he goes to the gym 30 minutes a day?

A. At their building.

Q. I'm sorry?

A. I think where they live, they had one there.

Q. Ma'am, did he tell you that he goes to the gym for 30 minutes a day?

A. Yes.

Q. And he also told you that he walks on treadmills and stretches?

A. Yes.

Q. So when you saw him in July of ‘24, he was actively going to the gym every day for 30 minutes?

A. That’s what he reported.

[Suppl. ROA at 548:10-25.]

Evidence presented at trial supported that ARKADY KANE fully recovered after the accident. For instance, portions of the videotaped deposition testimony of the treating orthopedic surgeon, Matthew Avery, M.D., were played for the jury. [Suppl. ROA at 260:10-270:2.] In the recording, Dr. Avery testified that patients who sustain a pelvic fracture, like ARKADY KANE did, are “typically . . . able to get back to ambulating within about four weeks.” [Suppl. ROA at 263:25-264:1.] Dr. Avery further testified that long-term issues arising from a pelvic fracture are not common: “And very infrequently are there long-term issues with this particular injury.” [Suppl. ROA at 264:12.] Dr. Avery also testified that pain typically resolves within a month, and rehabilitation is generally limited to two months:

> Usually, they get up and start walking with a walker almost immediately. Most of the pain has resolved over the course of maybe four weeks. I would expect most patients probably to get off of the walker by maybe eight weeks. Every once in a while, we see patients needing several months of rehabilitation to restrengthen the legs. But usually that is the extent of the rehab.
>
> [Suppl. ROA at 264:14-20.]

Importantly, Dr. Avery authored a medical note in which he stated that ARKADY KANE had no restrictions just one month after the subject accident. [See ROA at 582.] That same note also stated that, just one

month after the accident, ARKADY KANE no longer required any additional follow-up. [*See id.*] Dr. Avery's note further reflected that ARKADY KANE had a "smooth a[nd] nonantalgic gait" [*see id.*], meaning he was ambulating without a limp [see Suppl. ROA at 132:9-10].

Moreover, ARKADY KANE testified that he did not receive any medical care in relation to the subject accident after 2021, and he also testified that he returned to work just six months after the accident:

> Q. Aside from your annual exams, any orthopedic specialists?
>
> A. No.
>
> Q. Any orthopedic surgeons?
>
> A. No.
>
> Q. So you haven't seen anyone in relation to any orthopedic injuries since 2021, the year of this incident?
>
> A. No.
>
> Q. And we have confirmed that you were back to work within six months?
>
> A. In six months.
>
> [*See* Suppl. ROA at 340:13-23.]

ii. At the charge conference, Plaintiffs did not object to submitting the issue of permanency to the jury.

On June 26, 2026, the trial court held the charge conference. [*See* Suppl. ROA at 666:8-686:12.] During the charge conference, the only issues which were raised concerned the jury instruction regarding aggravation of injury [*see* Suppl. ROA at 667:3-673:24], the jury instruction regarding punitive damages [*see* Suppl. ROA at 673:25-679:17], the jury instruction regarding compensatory damages [*see* Suppl. ROA at 679:23-681:8], and

whether the verdict form should include references to present money value [*see* Suppl. ROA at 681:16-683:16]. At no time during the charge conference did Plaintiffs raise any objections to the jury being instructed on permanency, nor to the jury being asked to make determinations regarding permanency in reaching their verdict. [*See* Suppl. ROA at 666:8-686:12.]

iii. Plaintiffs raised an untimely motion for directed verdict on the issue of permanency of injury.

On June 26, 2026, the defense rested its case. [*See* Suppl. ROA at 652:12-17.] Plaintiffs subsequently moved for a directed verdict on the issue of entitlement to punitive damages. [*See* Suppl. ROA at 654:12-14.] Shortly thereafter—albeit that same afternoon—Plaintiffs filed their written motion for directed verdict on entitlement to punitive damages. [*See* ROA at 506-23.] Neither in their written motion nor during oral argument did Plaintiffs ask the trial court for a directed verdict on the issue of permanency of injury. [*See* ROA at 506-23; Suppl. ROA at 654:12-664:14.] After the directed verdict proceedings, the trial court conducted the charge conference, as summarized above. [*See* Suppl. ROA at 666:8-686:12.]

Plaintiffs failed to move for a directed verdict on permanency before the trial court adjourned on June 26th. [*See* Suppl. ROA at 652:12-686:12.] Instead, seconds after the trial court announced on June 27th that the jury would be escorted into the courtroom to hear closing arguments, Plaintiffs made a motion for directed verdict on permanency. [*See* Suppl. ROA at 763:2-12.] In so doing, they admitted that they failed to move for a directed verdict the preceding day (i.e., at the close of all the evidence in this case):

> THE COURT: All of the instructions have been printed. We are ready to bring in the jury.

> MR. MONTOYA: Judge, I do have one issue. I just took a call from Mr. Wallen, who is running late because of the rain, which isn't necessarily an issue, but the issue is this: On the issue of permanency, we did not move for a directed verdict yesterday. After discussions with Mr. Wallen, my appellate counsel, we do believe that we are entitled to a directed verdict on the issue of permanency. I will make my record for the Court.
>
> [*Id.*]

Plaintiffs then argued the basis for their purported entitlement to a directed verdict on the permanency of ARKADY KANE's injuries. [*See* Suppl. ROA at 763:13-764:11.] They claimed that the testimony of Dr. McCarthy established permanency, and they further argued (in the alternative) that the question of permanency could not be submitted to the jury absent evidence that EDWARD ORJUELA TAYLOR had personal injury protection. [*See id.*]

EDWARD ORJUELA TAYLOR responded by underscoring the untimeliness of the motion, and by arguing that permanency was a jury issue because there was "substantial competent evidence for . . . [the jury] to dispute . . . permanen[cy]," including Dr. McCarthy's testimony that ARKADY KANE "had no complaints of pain, full range of motion, full sensation, [and was] totally neurologically intact, with full strength." [*See* Suppl. ROA at 764:12-765:9.]

ASCENDANT COMMERCIAL INSURANCE, INC. noted that the testimony of Dr. Avery showed that ARKADY KANE "made a full recovery" following the subject accident. [*See* Suppl. ROA at 765:13-16.] ASCENDANT COMMERCIAL INSURANCE, INC. also highlighted the lack

of testimony that ARKADY KANE would have "lifelong functional disability in the future." [*See* Suppl. ROA at 765:16-19.]

Upon hearing the foregoing argument of counsel, the trial court denied Plaintiffs' motion for directed verdict on procedural and substantive grounds:

> THE COURT: Okay. So I find that the motion is untimely; that even if it had been brought timely, it would be denied and it would go to the jury.

[*See* Suppl. ROA at 765:20-22.]

C. EDWARD ORJUELA TAYLOR's financial resources

i. Evidence at trial

At trial, EDWARD ORJUELA TAYLOR testified that he rents an apartment, he washes cars for a living, he earns around $3,600 monthly, his monthly expenses are between $2,500 and $2,600, he estimates his net worth to be between $500 and $600, he does not own a car, he does not own any jewelry aside from a watch, and he has about $1,500 and $1,600 in cash. [*See* Suppl. ROA at 646:8-649:12.] When asked to identify any items of value in his home, EDWARD ORJUELA TAYLOR did not identify any items. [*See* Suppl. ROA at 649:7-10.]

ii. Jury instructions

On June 23, 2025, the Plaintiffs and EDWARD ORJUELA TAYLOR submitted their proposed jury instructions. [*See* Suppl. ROA at 877-942.] With respect to punitive damages, EDWARD ORJUELA TAYLOR asked the trial court to instruct the jury to consider his financial resources, and to not award an amount which would financially destroy him. [*See* Suppl. ROA at 909-10.] Plaintiffs' instruction on punitive damages did not contain this charge. [*See* Suppl. ROA at 936.]

At the charge conference, Plaintiffs argued that EDWARD ORJUELA TAYLOR was not entitled to have the jury consider his financial resources. [*See* Suppl. ROA at 673:25-675:9.] EDWARD ORJUELA TAYLOR countered that the testimony was sufficient to warrant the instruction:

> MR. MENDLESTEIN: Judge, he clearly testified about – he was asked the question about his net worth, income, assets, liabilities. When you have nothing, it's pretty hard to make a calculation. He said, I have nothing. I think there's competent evidence to go to the jury. This is just like the wage issue. Is there any evidence to go to the jury? Yes, there is. And he's testified about his net worth very clearly.
>
> …
>
> Yes, he testified he washed cars. He told what his income was. He has no property. He has no jewelry, nothing of value. There's nothing in his home. He rents a place that he shares with three people. That all came in.
>
> He was asked what his net worth was. He testified. There was no objection. So we do have on the record competent substantial evidence to go to the jury.
>
> [*See* Suppl. ROA at 675:10-20, 677:22-678:6.]

The trial court agreed that the evidence was sufficient to trigger the instruction regarding financial resources, and it charged the jury as follows:

> The Court instructs you that punitive damages are warranted against Defendant Taylor as punishment for causing an automobile collision while intoxicated by alcohol and to act as deterrent to others. Therefore, you must decide the amount of punitive damages to be assessed against Defendant Taylor. That amount would be in addition to the compensatory damage you have previously awarded. In making this determination, you should decide any disputed factual issues by the greater weight of the evidence.
>
> In making this determination, you should consider the following:

> One, the nature and extent and degree of misconduct and the related circumstances, including the following: A, whether the wrongful conduct was motivated solely by unreasonable financial gain.
>
> B, whether the unreasonably dangerous nature of the conduct, together with the high likelihood of injury resulting from the conduct, was actually known by Defendant Taylor.
>
> And C, whether at the time of loss, injury or damage Defendant Taylor had a specific intent to harm Plaintiff Arkady Kane and the conduct of Defendant Taylor did, in fact, harm Plaintiff Arkady Kane.
>
> And two, the financial resources of Defendant Taylor.
>
> However, you may not award an amount of money that would financially destroy Defendant Taylor.
>
> You may in your discretion decline to assess punitive damages.
>
> [*See* Suppl. ROA at 773:7-774:11.]

D. Compensatory Damages

i. Jury instructions

With respect to the parties' proposed instructions regarding compensatory damages, both sets of proposed instructions were modeled after Florida Standard Jury Instruction 501.1 and 501.2. [*See* Suppl. ROA at 905-06, 928-29.] As such, neither proposed instruction asked the jury to consider or disregard EDWARD ORJUELA TAYLOR's financial resources. [*See id.*] Instead, both proposed instructions asked the jury to award the total amount of loss, injury, or damage which the greater weight of the evidence showed would fairly and adequately compensate ARKADY KANE for his loss, injury, or damage, including any damages he was reasonably certain to incur or experience in the future. [*See* Suppl. ROA at 905, 928.]

Nevertheless, at the charge conference, Plaintiffs made an ore tenus request for a special jury instruction on compensatory damages. [*See* Suppl. ROA at 679:22-680:6.] Plaintiffs asked the trial court to instruct the jury not to consider EDWARD ORJUELA TAYLOR's financial resources in awarding compensatory damages. [*Id.*] The only basis articulated by Plaintiffs in support of the special instruction was that they did not want EDWARD ORJUELA TAYLOR to argue that he lacked resources to pay compensatory damages. [*See* Suppl. ROA at 680:19-21.] In response, EDWARD ORJUELA TAYLOR represented to the court that no such improper remarks would be made. [*See* Suppl. ROA at 680:22-25.] Based on the foregoing—and based on the fact that the jury would be instructed that ASCENDANT COMMERCIAL INSURANCE, INC. would pay for all damages except punitive damages—the trial court declined to give Plaintiffs' special instruction. [*See* Suppl. ROA at 681:1-6.]

ii. Opening statements and closing arguments regarding ASCENDANT COMMERCIAL INSURANCE, INC.'s obligation to pay

In addition to an instruction which apprised the jury that ASCENDANT COMMERCIAL INSURANCE, INC. would pay for all damages except punitive damages [*see* Suppl. ROA at 768:16-769:1], the jury also heard remarks in opening statements and closing arguments regarding ASCENDANT COMMERCIAL INSURANCE, INC.'s responsibility to pay for all damages except punitive damages. For instance, during opening statements, ASCENDANT COMMERCIAL INSURANCE, INC. itself stated as follows:

> We are here to pay what is reasonable and fair and related to the May 15, 2021 accident. Ascendant Commercial Insurance

> has never denied coverage to Mr. Kane. That is not what this case is about. This is about how much, if anything, Ascendant is responsible to pay for damages to Mr. Kane.
>
> [Suppl. ROA at 137:19-24 (emphasis added).]

Similarly, during closing arguments Plaintiffs made repeated reference to ASCENDANT COMMERCIAL INSURANCE, INC.'s obligation to pay:

> The second point I would like to make – I am almost done – I told you this was a case about responsibility. And I had said personal responsibility. There is also corporate responsibility, the insurance company. The Judge has instructed you that defendant insurance company is responsible for any negligence of Defendant Edward Orjuela Taylor that was a legal cause of loss, injury or damage to the plaintiffs. They are responsible.
>
> [Suppl. ROA at 828:11-19.]
>
> Responsibility. The insurance company is responsible for his damages.
>
> [Suppl. ROA at 829:3-4.]

E. The jury's verdict

On June 27, 2025, the jury returned a verdict awarding ARKADY KANE a total of $43,000.00 in compensatory damages. [See ROA at 540.] Because the jury found that ARKADY KANE did not sustain a permanent injury as a result of the motor vehicle accident, the jury did not award Plaintiffs any non-economic damages. [See ROA at 541.] With respect to punitive damages, the jury awarded $30,000.00. [See ROA at 542.]

F. Plaintiffs' motion for a new trial

On July 10, 2025, Plaintiffs moved for a new trial. [See ROA at 627-54.] Plaintiffs contended that (i) the jury's verdict on permanency was against the manifest weight of the evidence and/or the trial court should have entered a directed verdict on permanency, (ii) Defendants did not establish that

§ 627.737, Fla. Stat., (which limits recovery of noneconomic damages to cases involving a permanent injury) applied because Defendants did not put on evidence that EDWARD ORJUELA TAYLOR had personal injury protection coverage, and (iii) counsel for ASCENDANT COMMERCIAL INSURANCE, INC. made improper remarks during closing arguments. [*See id.*]

EDWARD ORJUELA TAYLOR filed a response in opposition on July 23, 2025. [See ROA at 655-1,269.] Therein, EDWARD ORJUELA TAYLOR argued that (i) Plaintiffs failed to timely move for a directed verdict on the issue of permanency, and the jury's verdict on this issue was not against the manifest weight of the evidence, (ii) Plaintiffs waived any objection to the issue of permanency being submitted to the jury, and, in any event, § 627.737 applied under *State Farm Mut. Auto Ins. Co. v. Dixon*, 732 So. 2d 1 (Fla. 3d DCA 1999), and (iii) Plaintiffs failed to raise a contemporaneous objection to the closing argument by ASCENDANT COMMERCIAL INSURANCE, INC.'s counsel, and the challenged statements did not constitute fundamental error. [See ROA at 655-76.]

On September 2, 2025, the trial court denied Plaintiffs' motion for a new trial. [See ROA at 1,270.] The trial court entered final judgment on October 24, 2025. [See ROA at 1,279.] The instant appeal followed. [See ROA at 1,277-81.]

As reflected in the appellate docket, the trial court entered an amended final judgment on January 22, 2026, after this Court relinquished jurisdiction for said purpose; Plaintiffs filed an amended notice of appeal on or about February 5, 2026.

SUMMARY OF THE ARGUMENT

The trial court correctly denied Plaintiffs' motion for a directed verdict on the issue of permanency because the motion failed on the merits, and it was raised in an untimely matter. With respect to the merits, the question of permanency of injury presents a jury issue.

Additionally, Plaintiffs overlook that § 627.737—which bars recovery of non-economic damages unless the jury finds a permanent injury—applies not only when there is evidence of personal injury protection coverage, but also when the applicable insurance policy limits recovery of non-economic damages to cases involving a permanent injury. *See State Farm Mut. Auto Ins. Co. v. Dixon*, 732 So. 2d 1 (Fla. 3d DCA 1999). The Ascendant Policy contains such language.

Procedurally, Plaintiffs' motion for directed verdict was untimely because Plaintiffs failed to raise it at the close of evidence and/or prior to the charge conference. Plaintiffs, therefore, waived their ability to now challenge the trial court's decision to submit the issue of permanency to the jury. *See* Fla. R. Civ. P. 1.470(b), 1.480(a). To the extent that the trial court had discretion to entertain the untimely motion, the trial court did not abuse its discretion in declining to do so—especially considering that Plaintiffs raised their motion mere moments before the case was to be submitted to the jury.

Moreover, the trial court correctly denied Plaintiffs' motion for a new trial because the jury's verdict on permanency accorded with the evidence. With respect to scarring, Dr. McCarthy did not testify that ARKADY KANE had significant scarring—which is required when scarring is relied upon

to show permanency of injury. With respect to post-traumatic arthritis, the record evidence provided the jury with a basis for rejecting Dr. McCarthy's conclusion: the medical records, the testimony of Dr. Avery, and the testimony of ARKADY KANE.

Furthermore, the trial court correctly instructed the jury to consider EDWARD ORJUELA TAYLOR's financial resources in making a punitive damages award. EDWARD ORJUELA TAYLOR presented considerable net worth evidence, thereby entitling him to the instruction.

Additionally, the trial court did not abuse its discretion in declining to give a special jury instruction on compensatory damages. Preliminarily, Defendants herein note that there are multiple preservation issues. First, Plaintiffs failed to submit to the trial court a written request for a special jury instruction, as required under Fla. R. Civ. P. 1.470(b). Second, Plaintiffs argue on appeal that their special instruction was necessary to avoid jury confusion, yet they failed to raise this argument with the trial court.

Looking beyond the preservation issues, the jury instruction on compensatory damages given by the trial court is presumed correct because it was modeled after the standard jury instructions. In fact, the jury instruction initially requested by the Plaintiffs before the charge conference was likewise modeled after the standard jury instructions. Plaintiffs have not shown that the failure to give their special jury instruction (which Plaintiffs requested ore tenus at the charge conference) constituted error—much less prejudicial error or a miscarriage of justice. The jury was advised on multiple occasions that ASCENDANT COMMERCIAL INSURANCE, INC. would pay any compensatory damages, thereby obviating any concerns that the jury

might take into consideration EDWARD ORJUELA TAYLOR's ability to pay in making an award for compensatory damages.

Finally, the trial court correctly denied Plaintiffs' motion for a new trial because the challenged remarks made in closing argument do not constitute error, much less fundamental error. The challenged remarks were well within the confines of permissible closing argument. Also, Plaintiffs have failed to show that the verdict could not have been obtained but for the complained-of remarks made in closing argument; the verdict accorded with the evidence.

STANDARD OF REVIEW

"The standard of review for a directed verdict is de novo." *Banco Espirito Santo Int'l, Ltd. v. BDO, Int'l*, 979 So. 2d 1030, 1032 (Fla. 3d DCA 2008).

With respect to a motion for new trial, if a movant's motion for new trial is based on the contention that the verdict was against the manifest weight of the evidence, the appropriate standard of review is abuse of discretion. *Weatherly v. Louis*, 31 So. 3d 803, 805 (Fla. 3d DCA 2009); *see also Nunez v. Universal Prop. & Cas. Ins. Co.*, 325 So. 3d 267, 271 (Fla. 3d DCA 2021). Significantly, "[t]he question for an appellate court is not whether or not the [verdict] was contrary to the manifest weight of the evidence presented below." *Weatherly*, 31 So. 3d at 805 (quoting *Dewitt v. Maruhachi Ceramics of Am., Inc.*, 770 So. 2d 709, 711 (Fla. 5th DCA 2000)). "Rather, the appellate court is limited to considering whether or not the trial court abused its discretion in denying a new trial. In order for [the appellate

court] to reach that conclusion, the evidence must be clear and obvious, and not conflicting . . . ." *Id.* (quoting *Dewitt*, 770 So. 2d at 711).

With respect to jury instructions, "Florida law is clear that decisions regarding jury instructions rest within the sound discretion of the trial court and should not be overturned on appeal absent a showing of prejudicial error." *Barkett v. Gomez*, 908 So. 2d 1084, 1086 (Fla. 3d DCA 2005) (quoting *Gonzalez v. Rose*, 752 So. 2d 39, 40 (Fla. 3d DCA 2000)). "The failure to give a requested jury instruction constitutes prejudicial error when there is a reasonable possibility that the jury could have been misled by the failure to give the instruction." *Id.* Demonstrating that the failure to give a requested jury instruction constitutes reversible error requires the appellant to "establish that the requested instruction contained an accurate statement of the law, the facts in the case supported a giving of the instruction, and the instruction was necessary for the jury to properly resolve the issues in the case." *Id.*

Finally, appellate courts "employ an abuse of discretion standard of review when considering the correctness of a trial court's grant or denial of a new trial based on unobjected-to closing argument." *Fla. Peninsula Ins. Co. v. Nolasco*, 318 So. 3d 584, 586 (Fla. 3d DCA 2021) (quoting *Murphy v. Int'l Robotic Sys., Inc.*, 766 So. 2d 1010, 1031 (Fla. 2000)). "[T]he primary concern of courts must be how the improper closing argument affected the fairness of the trial proceedings." *Id.* (quoting *Murphy*, 766 So. 2d at 1029).

ARGUMENT

A. The trial court correctly denied Plaintiffs' motion for a directed verdict on the issue of permanency.

When ruling upon a motion for directed verdict, the trial court must make the following inquiry: "whether the evidence presents a sufficient disagreement to require submission to a jury or whether it is so one-sided that one party must prevail as a matter of law." *Dumigan v. Holmes Reg'l Med. Ctr., Inc.*, 332 So. 3d 579, 587 (Fla. 5th DCA 2022) (quoting *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 251-52 (1986)). "If there is any evidence to support a verdict for the nonmoving party, it is improper to enter a directed verdict." *Id.* at 583.

As a preliminary matter, Defendants would note that permanency of injury presents a jury question. As summarized in the succeeding section, there was ample evidence introduced at trial which created a genuine issue of material fact on the question of permanency of injury—i.e., the medical records, the testimony of Dr. Avery, and the testimony of ARKADY KANE. Therefore, it cannot be said that the evidence was so one-sided such that Plaintiffs prevailed as a matter of law on the question of permanency.

Nevertheless, in their Initial Brief, Plaintiffs argue that they were entitled to a directed verdict on permanency because Defendants did not establish the applicability of § 627.737, upon failing to show that EDWARD ORJUELA TAYLOR had personal injury protection coverage. On this basis, Plaintiffs claim that the jury should not have reached the issue of permanency. Plaintiffs' argument fails.

Under § 627.737, in actions arising out of motor vehicle accidents, plaintiffs may not recover non-economic damages unless the jury finds that the plaintiffs sustained a permanent injury:

> In any action of tort brought against the owner, registrant, operator, or occupant of a motor vehicle with respect to which security has been provided as required by ss. 627.730-627.7405, or against any person or organization legally responsible for her or his acts or omissions, a plaintiff may recover damages in tort for pain, suffering, mental anguish, and inconvenience because of bodily injury, sickness, or disease arising out of the ownership, maintenance, operation, or use of such motor vehicle only in the event that the injury or disease consists in whole or in part of:
>
> (a) Significant and permanent loss of an important bodily function.
>
> (b) Permanent injury within a reasonable degree of medical probability, other than scarring or disfigurement.
>
> (c) Significant and permanent scarring or disfigurement.
>
> (d) Death.

See § 627.737(2).

Here, Plaintiffs' argument is predicated on the premise that § 627.737 only applies when there is evidence of personal injury protection ("PIP"). Not so, as explained by this Court in *State Farm Mut. Auto Ins. Co. v. Dixon*, 732 So. 2d 1 (Fla. 3d DCA 1999). In *Dixon*, "[t]he Dixons collided with a vehicle driven by an uninsured motorist and sought benefits from State Farm, their uninsured motorist carrier." 732 So. 2d at 1. The Dixons argued that the showing of permanency under § 627.737 is only required "if the tortfeasor carries some level of insurance." *Id.* at 2. This Court rejected the argument

and noted that the language in the insurance policy rendered § 627.737 applicable:

> The State Farm policy at issue herein provides that benefits for bodily injury are available under the UM coverage if "[t]he bodily injury [is a] serious injury as described in section 627.737(2) of the Florida Motor Vehicle No-Fault Law before we will pay for damages consisting of pain, suffering, mental anguish, or inconvenience." The current policy language has the effect of limiting the insured's coverage to that which she or he is entitled to under Florida law. We find that the trial court erred in failing to accept testimony, and to give an instruction, relating to the threshold requirements of section 627.737(2)(a)-(d).
>
> Based on the foregoing, this cause is reversed and remanded for a new trial with instructions that the plaintiff must meet the threshold requirements of section 627.737(2)(a)-(d) before State Farm can be held responsible for non-economic damages.
>
> *Id.*

Dixon is on all fours with the instant case. Analogously, ARKADY KANE was involved in a motor vehicle accident with an uninsured driver. Moreover, as excerpted *supra*, the Ascendant Policy limits recovery of non-economic damages and requires that ARKADY KANE first prove a permanent injury before he can recover uninsured motorist benefits for non-economic damages. [See ROA at 172.] Under these circumstances, the trial court correctly allowed the jury to reach the issue of permanency.

Defendants further submit that not only did the trial court correctly determine that Plaintiffs' directed verdict motion failed on the merits, but it also correctly determined that Plaintiffs' directed verdict motion was untimely.

It is axiomatic that motions for directed verdict must be heard before the charge conference because the purpose of a charge conference is to settle instructions to be given to the jury—based on the evidence admitted at trial and on the issues which will go to the jury. Case law illustrating this procedural chronology abound. *See, e.g.*, *Vargas v. Dulzaides*, 520 So. 2d 306, 307 (Fla. 3d DCA 1988) ("After extensive argument, the trial court denied the motion for a directed verdict. Following a charge conference, the trial court gave the following jury instruction . . . "); *Gross v. Lyons*, 721 So. 2d 304, 305-06 (Fla. 4th DCA 1998) ("The trial court granted a directed verdict on apportionment but at the same time advised the parties that they could argue this issue to the jury. At the charge conference, defendant asserted that she was nonetheless entitled to separate jury instructions concerning the preexisting back condition and the second accident."); *Philpot v. Bouchelle*, 411 So. 2d 1341, 1342 (Fla. 1st DCA 1982) ("The record reveals that the appellant made a motion for directed verdict both at the close of the appellee's case-in-chief and at the close of the case. Additionally, he renewed his motion at the charge conference after all the the [sic] evidence had been presented."); *see also Wald v. Grainger*, 64 So. 3d 1201, 1207 (Fla. 2011) ("After the trial court granted the directed verdict, Wald's counsel asked the court to remove the instruction relating to permanency and to remove this from the verdict form as well. Grainger's counsel voiced no objection on this ground when asked by the trial court if the instructions and verdict form were acceptable. Thus, Grainger did not preserve any issue relating to the adequacy of the jury instruction or the verdict form.")

Here, Plaintiffs failed to move for a directed verdict on permanency of injury before the charge conference; they only moved for a directed verdict on entitlement to punitive damages before the charge conference. By failing to move for a directed verdict on permanency prior to the charge conference, Plaintiffs waived their opposition to submitting the question of permanency to the jury. *See* Fla. R. Civ. P. 1.470(b) (stating, in reference to the charge conference, that "[n]o party may assign as error the giving of any instruction unless that party objects thereto at such time, or the failure to give any instruction unless that party requested the same"); Fla. R. Civ. P. 1.480(a) (supporting that a motion for directed verdict is to be brought "at the close of evidence offered by the adverse party").

In arguing that their motion for directed verdict was timely, Plaintiffs rely exclusively upon *Am. Cas. Co. v. Pearce*, 101 So. 2d 440 (Fla. 2d DCA 1958). *Pearce* is distinguishable. The issue in *Pearce* was whether the trial court erred in granting a directed verdict for the defendant where "the record disclose[d] that no such motion was made at the closing of defendant's testimony." *Id.* at 442. However, the defendant in *Pearce* did move for a directed verdict "at the conclusion of the plaintiff's evidence." *Id.* Relying upon *Derosier v. New England Telephone & Telegraph Co.*, 1926, 82 N.H. 405, 134 A. 719, 720 (1926) in support of the proposition that a trial court has discretion to consider an untimely motion for directed verdict, the Second District in *Pearce* affirmed the directed verdict.

Whereas *Pearce* did not involve a late motion for directed verdict, the instant matter does. Moreover, *Pearce* is silent as to Rules 1.470(b) and 1.480(a)—presumably because the rules were not implicated, given that the

motion for directed verdict was made at the close of the plaintiff's case in chief. Furthermore, at most, *Pearce* supports that a trial court may consider an untimely motion for directed verdict, not that it must consider such an untimely motion.

Here, even assuming *arguendo* that the trial court had discretion to entertain Plaintiffs' motion for directed verdict, no abuse of discretion has been shown by Plaintiffs. Simply stated, even looking beyond the fact that Plaintiffs' motion for directed verdict on permanency failed on the merits, Plaintiffs could have moved for a directed verdict before the charge conference, yet they failed to do so. Instead, they waited until the case was ready to be submitted to the jury to raise an ore tenus motion. The trial court correctly determined that Plaintiffs' motion was untimely.

B. The trial court correctly denied Plaintiffs' motion for a new trial because the jury's verdict on permanency accorded with the evidence.

"A trial judge may order a new trial on the grounds that the verdict is inadequate or excessive, against the manifest weight of the evidence, or both." *Brown v. Estate of Stuckey*, 749 So. 2d 490, 498 (Fla. 1999). With respect to orders granting new trials on the basis that the verdict is against the manifest weight of the evidence, the Florida Supreme Court has explained that such orders are intended to prevent miscarriages of justice in light of the evidence:

> The trial judge's discretionary power to grant a new trial on the grounds that the verdict is contrary to the manifest weight of the evidence is the only check against a jury that has reached an unjust decision on the facts. This discretionary power emanates from the common law principle that it is the duty of the trial judge to prevent what he or she considers to be a miscarriage

> of justice. *See Aetna Cas. & Sur. Co. v. Yeatts*, 122 F.2d 350 (4th Cir. 1941). The role of the trial judge is not to substitute his or her own verdict for that of the jury, but to avoid what, in the judge's trained and experienced judgment, is an unjust verdict. Thus, the trial judge does not have broad discretion to enter a judgment for a litigant or to deny a litigant a jury trial. As our cases illustrate, this discretionary authority of a trial judge to order a new trial when the verdict is contrary to the manifest weight of the evidence has been applied to the benefit of both plaintiffs and defendants who have been victimized by unjust verdicts.

Brown, 749 So. 2d at 495 (emphasis added).

It is well settled that a jury is free to reject testimony regarding permanency (including uncontradicted expert testimony) where a reasonable basis for such a rejection exists, including but not limited to conflicting medical evidence, evidence that impeaches the expert's testimony or calls it into question, such as the failure of the plaintiff to give the medical expert an accurate or complete medical history, conflicting lay testimony or evidence that disputes the injury claim, or the plaintiff's conflicting testimony or self-contradictory statements regarding the injury. *Wald*, 64 So. 3d at 1205-06; *see also Behm v. Div. of Admin., State Dep't of Transp.*, 336 So. 2d 579, 582 (Fla. 1976) ("In considering an expert's testimony the jury must be guided by the greater weight of the evidence, and it remains the jury's province to determine the weight and credibility to be given an expert's testimony. . . . The opinion of an expert is worth no more than the reasons on which it is based, and if properly susceptible to differing interpretations the jury is at liberty to make such interpretations."); *Corbett v. Wilson*, 48 So. 3d 131, 134 (Fla. 5th DCA 2010) ("The trial

court also incorrectly concluded that expert testimony unrebutted by other expert testimony cannot be rejected by the jury. The jury is free to weigh the credibility of an expert witness, just as any other witness, and to reject such testimony, even if uncontradicted."); *Dep't of Agric. & Consumer Servs. v. Borgoff*, 35 So. 3d 84, 88 (Fla. 4th DCA 2010) ("[T]he finder of fact is free to determine the reliability and credibility of expert opinions and, if conflicting, to weigh them as the finder sees fit. Even when expert testimony is unchallenged, the finder of fact is free to weigh the opinion, just as it does with any other witness, and reject such testimony."); *Frank v. Wyatt*, 869 So. 2d 763, 765 (Fla. 1st DCA 2004) ("[W]e conclude that the trial court correctly denied his motion for a directed verdict that the injuries he received as a result of the collision were permanent. There was conflicting expert testimony regarding this issue. Even were that not the case, a jury is free to weigh the credibility of an expert witness just as it does any other witness, and to reject such testimony, even if uncontradicted.").

Here, Plaintiffs claim that ARKADY KANE sustained a permanent injury because he purportedly developed post-traumatic arthritis and scarring. Plaintiffs rely exclusively upon the testimony of their expert, Dr. McCarthy, in arguing that the jury's verdict on permanency went against the manifest weight of the evidence. However, under *Brown*, *Wald*, *Behm*, *Corbett*, *Borgoff*, and *Frank*—all cited *supra*—the jury was free to reject Dr. McCarthy's opinions given the lack of an adequate predicate and/or given the conflict with other evidence in the case.

For instance, with respect to Dr. McCarthy's opinions on post-traumatic arthritis, although Dr. McCarthy rendered opinions regarding

what happens to bones after they break, she conceded that she is not an orthopedist; she is a physiatrist. Furthermore, Dr. McCarthy did not dispute that diagnosing post-traumatic arthritis involves reviewing a patient's radiological imaging, yet Dr. McCarthy failed to review any of ARKADY KANE's radiological imaging, she did not ask ARKADY KANE to get updated imaging for her review, and she did not speak to any of ARKADY KANE's treating providers (who actually reviewed the radiological imaging) about whether they believed ARKADY KANE could have developed post-traumatic arthritis. Moreover, making diagnoses involves considering a patient's complaints, yet (i) the medical records reflect that ARKADY KANE had no restrictions just one month after the subject accident, (ii) Dr. McCarthy's physical examination of ARKADY KANE in July 2024 showed that he had normal range of motion, had normal sensation, and lacked pain, and (iii) Dr. McCarthy testified that ARKADY KANE advised her that he was actively going to the gym on a daily basis.

Stated succinctly, the record evidence provided the jury with a basis for rejecting Dr. McCarthy's conclusion regarding post-traumatic arthritis. The jury was free to discount Dr. McCarthy's opinions regarding post-traumatic arthritis as rank speculation, especially in light of other evidence —including but not limited to the testimony of Dr. Avery (who is an orthopedic surgeon).

Dr. Avery's testimony supports that long-term issues arising from a pelvic fracture are not common, that pain typically resolves within a month, and that rehabilitation is generally limited to two months. In fact, just one month after the accident, ARKADY KANE indeed had no restrictions, he no

longer required any additional follow-up, and he ambulated without a limp. Relatedly, ARKADY KANE testified that he has not sought medical care or treatment in relation to the accident since 2021.

With respect to scarring, although Dr. McCarthy testified that ARKADY KANE had scarring, significant scarring is required under the plain language of § 627.737, yet there was no evidence whatsoever as to the severity of the scarring. At most, Dr. McCarthy testified that it was possible that the scarring was significant; she stopped short of opining that the scarring was actually significant. *See Progressive Select Ins. Co. v. Reinberger*, 51 Fla. L. Weekly D1934, 1936 (Fla. 2d DCA Sep. 18, 2026) (stating that although the expert testified that their opinions were "with a reasonable degree of medical certainty," the expert's opinions were based on possibilities and speculation because the "testimony was replete with the words 'may,' 'could,' and 'if'"). Thus, the jury was not required to make a finding of significance. Absent such a finding, § 627.737 is not satisfied—if scarring is relied upon to establish permanency.

Plaintiffs' reliance upon *Evans v. Montenegro*, 728 So. 2d 270 (Fla. 3d DCA 1999) is misplaced. In *Evans*, this Court affirmed a final judgment in favor of the plaintiff. Although the defendant challenged the propriety of the trial court's directed verdict on the issue of permanency, this Court opined that no error occurred. This Court acknowledged that permanency determinations are generally made by juries. *Id.* at 271. However, this Court highlighted that both plaintiff's expert and defendant's expert testified that plaintiff's injury was permanent. *Id.* Additionally, this Court stated that "the defendant neither severely impeached the plaintiff's expert nor

presented other conflicting evidence on the issue of permanency." *Id.* Here, Defendants did not call an expert who testified that ARKADY KANE's injuries were permanent, and thus, this case is distinguishable from *Evans*. Moreover, although Plaintiffs argue that the issue of permanency should only have been submitted to the jury if Defendants (i) presented countervailing expert testimony, (ii) severely impeached Dr. McCarthy, or (iii) presented other evidence which created a direct conflict with Plaintiffs' evidence, this is false. Plaintiffs completely ignore the Florida Supreme Court's 2011 decision in *Wald*, which establishes that a jury may even reject uncontradicted expert testimony where a "reasonable basis" for such a rejection exists. *See Wald, supra*. Even looking beyond the fact that Plaintiffs attempt to invoke the incorrect standard, Defendants indeed severely impeached Dr. McCarthy by pointing out the serious issues with the predicate of her opinions, as summarized above.

Defendants also pointed to evidence which conflicted with Plaintiffs' contentions of permanency: the medical records, the testimony of Dr. Avery, and the testimony of ARKADY KANE. [*See, e.g.*, Suppl. ROA at 808:7-22, 809:13-15, 809:20-810:16.]

In summary, the trial court correctly denied Plaintiffs' motion for a new trial because the jury's verdict was not against the manifest weight of the evidence. The jury's verdict on permanency accorded with the evidence. As noted by this Court, "[a] trial court's discretion [to grant a new trial] is clearly not unbridled, . . . and a trial judge is not authorized to act as a 'seventh juror', . . . or to substitute his judgment for that of the jury on disputed questions of fact." *N. Dade Golf, Inc. v. Clarke*, 439 So. 2d 296, 298 (Fla.

3d DCA 1983). Here, Defendants offered competent evidence to dispute permanency, and it cannot be said that the jury, as reasonable persons, could not have concluded otherwise. *See id.* (reversing that portion of the trial court's order granting a new trial on causation where "the defendant offered competent evidence to dispute the allegation that defendant's negligence was the cause of plaintiff's heart attack, and it [could] be said that the jury, as reasonable persons, could not have concluded otherwise"). Plaintiffs have failed to show that the trial court abused its discretion because they have not shown that the evidence was "clear and obvious, and not conflicting." *See Weatherly*, 31 So. 3d at 805 (quoting *Dewitt*, 770 So. 2d at 711).

C. The trial court correctly instructed the jury to consider EDWARD ORJUELA TAYLOR's financial resources.

In arguing that the trial court should not have instructed the jury to consider EDWARD ORJUELA TAYLOR's financial resources, Plaintiffs rely upon *Bould v. Touchette*, 349 So. 2d 1181 (Fla. 1977), *Brooks v. Rios*, 707 So. 2d 374 (Fla. 3d DCA 1998), and *Evering v. Smithwick*, 526 So. 2d 185 (Fla. 3d DCA 1988). However, *Bould*, *Brooks*, and *Evering* are patently inapposite because the parties therein did not argue that the jury should not have considered financial resources in awarding punitive damages —nor is there any language in *Bould*, *Brooks*, or *Evering* which could be construed as bearing upon whether the jury should have considered financial resources. Rather, the issues in *Bould*, *Brooks*, and *Evering* centered on whether the awards for punitive damages were excessive— i.e., the issues on appeal dealt with the amount of the awards, not with the

charges to the jury. Taken together, *Bould*, *Brooks*, and *Evering* support the proposition that determining the amount of punitive damages is peculiarly within the province of the jury, and thus, a jury's punitive damages award will not be disturbed unless it is excessive; in turn, an appellate court cannot say that an award is excessive absent sufficient net worth evidence.

Here, Plaintiffs are not challenging the jury's punitive damages award. Thus, *Bould*, *Brooks*, and *Evering* are inapplicable.

Whereas *Bould*, *Brooks*, and *Evering* are inapposite, *Wransky v. Dalfo*, 801 So. 2d 239 (Fla. 4th DCA 2001) did deal with whether the trial court should have instructed the jury to consider the defendant's financial resources in awarding punitive damages. Therein, the Fourth District held that it is reversible error not to give such an instruction if the defendant requests the instruction and there is evidence of the defendant's financial resources presented at trial:

> In this case, failure to give the instruction resulted in a jury misled and confused by Dalfo's attorney's closing argument into believing that it could award any amount it wished irrespective of the defendant's financial resources. The failure to give the jury instruction resulted in a miscarriage of justice as to the punitive damage award. Where the defendant requests such an instruction and there is evidence of the defendant's financial resources presented at trial, we hold that it is error not to give an instruction informing the jury that the amount of punitive damages cannot bankrupt a defendant.

Id. at 243. The Fourth District held that the defendant was entitled to the aforementioned instruction despite the fact that "[t]he only evidence of Wransky's net worth was his salary of $ 9 per hour and $ 1,000 in assets." *See id.*

Here, EDWARD ORJUELA TAYLOR presented considerably greater net worth evidence than that presented in *Wranksy*. For instance, EDWARD ORJUELA TAYLOR testified that he rents an apartment, he washes cars for a living, he earns around $3,600 monthly, his monthly expenses are between $2,500 and $2,600, he estimates his net worth to be between $500 and $600, he does not own a car, he does not own any jewelry aside from a watch, and he has about $1,500 and $1,600 in cash. When asked to identify any items of value in his home, EDWARD ORJUELA TAYLOR did not identify any items. Under these circumstances, the trial court correctly instructed the jury to consider EDWARD ORJUELA TAYLOR's financial resources in making a punitive damages award, as well as to refrain from making a punitive damages award which would financially destroy EDWARD ORJUELA TAYLOR.

D. The trial court did not abuse its discretion in declining to give a special jury instruction on compensatory damages.

Fla. R. Civ. P. 1.470(b) requires parties to submit their proposed jury instructions in writing by the close of the evidence, and it further allows for the use of the Florida Standard Jury Instructions:

> The Florida Standard Jury Instructions appearing on The Florida Bar's website may be used, as provided in Florida Rule of General Practice and Judicial Administration 2.580, by the trial judges in instructing the jury in civil actions. Not later than at the close of the evidence, the parties shall file written requests that the court instruct the jury on the law set forth in such requests. . . .

See Fla. R. Civ. P. 1.470(b).

Per the Florida Supreme Court, "[t]he standard jury instructions are presumed correct and are preferred over special instructions." *Stephens*

v. State, 787 So. 2d 747, 755 (Fla. 2001). Moreover, if a party does not submit their requested instruction(s) in writing, they fail to preserve for appellate review any alleged failure by the trial court to charge the jury as requested. *See, e.g.*, *Feliciano v. Sch. Bd.*, 776 So. 2d 306, 307 (Fla. 4th DCA 2000) ("Feliciano failed to preserve her objections for appellate review. She objected to defendant's proposed pretext instruction during the charge, but did not offer a written instruction of her own to address this issue.")

Notably, "[a] trial court is accorded broad discretion in formulating appropriate jury instructions and its decision should not be reversed unless the error complained of resulted in a miscarriage of justice or the instruction was reasonably calculated to confuse or mislead the jury." *Barton Protective Servs., Inc. v. Faber*, 745 So. 2d 968, 974 (Fla. 4th DCA 1999); *see also Barbour v. Brinker Fla.*, 801 So. 2d 953, 959 (Fla. 5th DCA 2001) (same). Stated differently, "[i]f the jury instructions, as a whole, fairly state the applicable law to the jury, the failure to give a particular instruction will not be an error." *Faber*, 745 So. 2d at 974.

Here, although Plaintiffs made a request during the charge conference for the trial court to give a special jury instruction on compensatory damages, Plaintiffs failed to submit a request in writing. As stated above, with respect to the compensatory damages instruction, Plaintiffs had initially submitted a written proposal modeled after Florida Standard Jury Instruction 501.1 and 501.2. Accordingly, Plaintiffs' initial proposal did not ask the jury to consider or disregard EDWARD ORJUELA TAYLOR's financial resources; the instruction asked the jury to award the total amount of loss, injury, or damage which the greater weight of the evidence showed would fairly and

adequately compensate ARKADY KANE for his loss, injury, or damage, including any damages he was reasonably certain to incur or experience in the future. Plaintiffs did not make a request for a special instruction on compensatory damages until the charge conference, but their request was only made ore tenus. They did not even read into the record the language of their proposed instruction. On the basis of noncompliance with Rule 1.470(b) alone, Plaintiffs failed to preserve for appellate review the question of whether the trial court should have given a special instruction on compensatory damages. *See Feliciano*, supra.

Additional preservation issues arise from Plaintiffs' failure to raise with the trial court the specific arguments they now raise on appeal. The only basis articulated by Plaintiffs at the charge conference in support of their requested special instruction was that they did not want EDWARD ORJUELA TAYLOR to argue that he lacked resources to pay compensatory damages. They did not argue that the failure to give a special instruction could result in jury confusion. Thus, said argument is not properly before this Court.

"In order to be preserved for further review by a higher court, an issue must be presented to the lower court and the specific legal argument or ground to be argued on appeal or review must be part of that presentation if it is to be considered preserved." *Tillman v. State*, 471 So. 2d 32, 35 (Fla. 1985).

Moreover, "[i]t is a familiar canon of appellate review that appellate courts are loath to rule upon issues not directly ruled upon by the trial court." *Glendale Fed. Sav. & Loan Assoc. v. State*, 485 So. 2d 1321, 1325 (Fla. 1st

DCA 1986). Appellate courts have consistently declined to address issues which were not ruled upon by the trial courts. *See, e.g.*, *McGurn v. Scott*, 596 So. 2d 1042, 1043 n.2 (Fla. 1992) ("McGurn also asserts that Scott is not entitled to prejudgment interest as a matter of law. We decline to address this issue as it was not ruled on by the trial court."), *overruled on other grounds by Westgate Miami Beach, Ltd. v. Newport Operating Corp.*, 55 So. 3d 567 (Fla. 2010); *Akers v. City of Miami Beach*, 745 So. 2d 532 (Fla. 3d DCA 1999) ("Appellee would have us affirm the summary judgment nevertheless on the alternative ground that there is insufficient evidence to support a finding of negligence on the part of the City. Because the trial court based its judgment solely on the workers' compensation immunity and this court should not ordinarily decide issues not ruled on by the trial court in the first instance, we reverse the summary judgment and express no opinion as to the legal merits of appellee's alternative ground at this time."); *State v. Rogers*, 391 So. 3d 661, 667 (Fla. 1st DCA 2024) ("While the trial court certainly could have exercised its inherent authority to reconsider its ruling, there is no indication in the record that the trial court addressed the State's new argument on the merits. The court simply denied the motion for rehearing without comment. As such, the State's argument that the Statewide Prosecutor is Florida's principal prosecuting attorney is not properly before us in this appeal.").

As explained by this Court in *Sierra by Sierra v. Pub. Health Tr.*, 661 So. 2d 1296, 1298 (Fla. 3d DCA 1995), appellate courts cannot "decide issues that were not ruled on by a trial court in the first instance" because "[a]n appellate court is reactive; it can only review asserted errors made by lower tribunals such as courts and administrative agencies."

The case sub judice should be governed by the general principles that (i) preservation requires a party to present the lower tribunal with the specific legal argument to be argued on appeal, and (ii) appellate courts cannot address issues which were not ruled upon by the trial courts. Here, Plaintiffs' failure to argue to the trial court that a special jury instruction was necessary to avoid jury confusion necessarily means that said issue has not been preserved for this Court's review.

Moreover, even looking beyond the multiple preservation issues, because the trial court instructed the jury in accordance with the standard jury instructions, the trial court's charge is presumed correct. Plaintiffs have failed to show that the trial court's instruction did not state the applicable law. It did.

Plaintiffs have also failed to show that any miscarriage of justice occurred. As noted above, Plaintiffs stated at the charge conference that they desired a special instruction out of concern that EDWARD ORJUELA TAYLOR would argue that he lacked resources to pay compensatory damages. However, EDWARD ORJUELA TAYLOR represented to the trial court that no such improper remarks would be made. As the record reflects, EDWARD ORJUELA TAYLOR did not represent to the jury that he lacked resources to pay compensatory damages.

Furthermore, the jury was apprised on multiple occasions that ASCENDANT COMMERCIAL INSURANCE, INC. would pay any compensatory damages awarded against EDWARD ORJUELA TAYLOR. The trial court so informed the jury while reading the jury instructions, and ASCENDANT COMMERCIAL INSURANCE, INC. made remarks in both

opening statements and closing arguments regarding its responsibility to pay for all damages except punitive damages. During closing argument, Plaintiffs likewise highlighted ASCENDANT COMMERCIAL INSURANCE, INC.'s responsibility to pay.

The authority relied upon by Plaintiffs in arguing that the trial court should have granted their request for a special jury instruction is inapposite:

- In *Samuels v. Torres*, 29 So. 3d 1193, 1193-94 (Fla. 5th DCA 2010), the issue before the Fifth District was "whether the trial court erred in denying the motion for mistrial made by the plaintiff, Robin Samuels, after defense counsel disclosed to the jury during opening statement how little the defendant, William Torres, earned in income." The issue on appeal did not concern an alleged failure to give a special jury instruction.
- In *Jacksonville Frosted Foods, Inc. v. Haigler*, 224 So. 2d 437, 438 (Fla. 1st DCA 1969), the First District reviewed "a directed verdict as to liability for compensatory damages and a jury verdict for compensatory and punitive damages." The issue on appeal did not concern an alleged failure to give a special jury instruction.
- In *Gibbs v. State*, 789 So. 2d 443 (Fla. 4th DCA 2001), the Fourth District reviewed the trial court's denial of the defendant's request for a special jury instruction. However, whereas Plaintiffs in the case at bar failed to preserve their challenge for the reasons stated above, the defendant in *Gibbs* "adequately preserved the issue." *See id.* at 444. Moreover, whereas the defendant in *Gibbs* established the necessity of the requested special instruction, the same is not true here, for reasons discussed below.

- In *Rinaldi v. Aaron*, 314 So. 2d 762, 763 (Fla. 1975), the Florida Supreme Court reviewed this Court's answer to the following question, which was certified by the trial court: "Whether or not the plaintiff must as a predicate for his claim for punitive damages introduce evidence of the defendant's financial worth and ability to pay any award of punitive damages in order for the issue to be considered by the jury?" The issue on appeal did not concern an alleged failure to give a special jury instruction.
- In *Chin v. Caiaffa*, 42 So. 3d 300 (Fla. 3d DCA 2010), this Court reviewed certain challenged litigation tactics. The issue on appeal did not concern an alleged failure to give a special jury instruction.
- In *Cliff Berry, Inc. v. State*, 116 So. 3d 394 (Fla. 3d DCA 2012), this Court reviewed the trial court's denial of the defendants' request for a special jury instruction. However, whereas Plaintiffs in the case at bar failed to preserve their challenge for the reasons stated above, preservation does not appear to have been an issue in *Cliff Berry, Inc.*—at least as it relates to the defendants' request for a special jury instruction. Moreover, whereas the defendants in *Cliff Berry, Inc.* established the necessity of the requested special instruction, the same is not true here, for reasons discussed below.

In summary, Plaintiffs have failed to show error—much less prejudicial error. First, because Plaintiffs failed to submit a written request or otherwise provide the trial court with the specific language they were requesting, this Court cannot determine whether Plaintiffs' special instruction on compensatory damages contained an accurate statement of the law. Second, Plaintiffs failed to raise with the trial court the arguments regarding

jury confusion which they now seek to have this Court pass upon. Third, Plaintiffs have not shown that the facts supported deviating from the standard instructions, which, again, are presumed correct. Fourth, given the multiple occasions on which the jury was informed that ASCENDANT COMMERCIAL INSURANCE, INC. would pay any compensatory damages, Plaintiffs have not shown that the instruction was necessary for the jury to properly resolve the issues in the case.

E. The trial court correctly denied Plaintiffs' motion for a new trial because the challenged remarks made in closing argument do not constitute fundamental error.

Per the Florida Supreme Court, "[t]he purpose of closing argument is to help the jury understand the issues in a case by 'applying the evidence to the law applicable to the case.'" *Murphy*, 766 So. 2d at 1028. "Attorneys should be afforded great latitude in presenting closing argument, but they must 'confine their argument to the facts and evidence presented to the jury and all logical deductions from the facts and evidence.'" *Id.* "Moreover, closing argument must not be used to 'inflame the minds and passions of the jurors so that their verdict reflects an emotional response . . . rather than the logical analysis of the evidence in light of the applicable law.'" *Id.* (emphasis added).

This Court has noted that "[a] contemporaneous objection to improper comments during closing argument is necessary to preserve error, unless the error can be said to be fundamental." *See Owens Corning Fiberglas Corp. v. Morse*, 653 So. 2d 409, 410 (Fla. 3d DCA 1995). "Fundamental error occurs if the argument 'was so prejudicial as to be incapable of cure

by rebuke or retraction,' . . . or if the error extinguishes 'a party's right to a fair trial.'" *Id.*

"[T]he Florida Supreme Court in *Murphy* announced a four-part test to be applied in determining whether unobjected-to improper closing argument amounts to fundamental error requiring a new trial." *Carnival Corp. v. Jimenez*, 112 So. 3d 513, 522 (Fla. 2d DCA 2013). The test has been articulated as follows:

> To prevail on a motion for new trial under *Murphy* requires that the complaining party "establish that the [challenged] argument [or attorney misconduct] was (1) improper, (2) harmful, (3) incurable, and (4) so damaging to the fairness of the trial that the public's interest in our system of justice requires a new trial."

Id. at 519; *see also Citizens Prop. Ins. Corp. v. Fontus*, 400 So. 3d 48, 48 (Fla. 3d DCA 2024) (citing favorably to *Murphy* and *Jimenez*).

With respect to ASCENDANT COMMERCIAL INSURANCE, INC.'s closing argument, Plaintiffs have cherry-picked language which they contend constitutes fundamental error; Plaintiffs submit that the challenged language was unduly inflammatory and undermined the fairness of the proceedings. The challenged language (which has been emphasized below, and which must be read in context) is drawn from the following segment of ASCENDANT COMMERCIAL INSURANCE, INC.'s closing argument:

> The reason we are here is because they want $7.5 million in damages for this car accident. I told you on Wednesday in my opening statement to listen to the evidence through a lens that is unbiased and free of sympathy. And why did I say that? Because I knew that this was how this case was going to play out. I knew that they were going to tug at your heartstrings. Every single photograph that they have shown you, photograph after photograph to show you the damage to the vehicle, to show you the impact, to show you Mr. Kane in a walker, to show Mr.

> Kane at the hospital. Apparently, somebody pulls out a video camera while somebody, in their worst time in their life, is being videotaped for litigation purposes.
>
> What are we here about, ladies and gentlemen? We asked you at the beginning of this case to look at the evidence through the lens, unbiased, unfiltered and without sympathy. And we asked you, at the end of the day we are going to ask you to return a verdict that is just, that is fair and that is based on the evidence.
>
> The reason I said that is because I knew it was going to play out that not one medical record from the four-day hospitalization, from any of the treatment that Mr. Kane had since May of 2021 has been admitted into evidence by Mr. Kane's team.
>
> You are going to have 27 pieces of evidence with you back there. And the only medical record that is in evidence was introduced by Mr. Mendlestein on the defense side, and that is Dr. Avery's records. You do not have the uninsured hospital records, you do not have his primary care physician's records. All these admissions that they talked about back and forth, back and forth, to the ER, to the emergency, the EMS, for the gastric issues, not one medical record from any of those issues.
>
> Again, ladies and gentlemen, why? Because they knew that Dr. McCarthy was going to say it is not related. They knew that. But they wanted to confuse you, throw out a lot of stuff, see what sticks.
>
> I asked you at the beginning of this case, unbiased, unfiltered, free of sympathy. Look at the evidence. Base your verdict on the evidence, evidence and facts that you can look at, that you can touch, that you can see.
>
> [See Suppl. ROA at 819:17-821:12 (emphasis added).]

When read in context, it is clear that the challenged statements permissibly urged the jury to ignore the Plaintiffs' invitation to decide the case on an emotional basis, and to, instead, decide the case based on a logical analysis of the evidence. This was appropriate, especially

given Plaintiffs' decision to place into evidence media depicting an injured ARKADY KANE—including photographs of ARKADY KANE in a hospital bed and wheelchair. [See ROA at 1228-30.] This media appeared calculated to distract the jury from the patent lack of medical records to substantiate the Plaintiffs' claims regarding injury severity and/or permanency, and—in asking the jury not to be swayed by sympathy or appeals to emotion—ASCENDANT COMMERCIAL INSURANCE, INC. acted within the latitude afforded to parties during closing arguments.

Also, the fact that counsel for ASCENDANT COMMERCIAL INSURANCE, INC. mentioned that Plaintiffs (who commenced action less than two months after the subject accident) may have had an eye toward litigation at the time that they took certain pictures and videos accomplished nothing more than to invite the jury to weigh Plaintiffs' credibility—a function which is exclusively in the province of the jury. Jurors are permitted to consider potential biases in weighing the evidence.

Finally, contrary to Plaintiffs' contention, ASCENDANT COMMERCIAL INSURANCE, INC.'s counsel's remark regarding issue confusion is not tantamount to an attack upon counsel's integrity. Under the very authority cited by Plaintiffs, remarks impugning counsel's integrity have been deemed to exist where (i) comments are made "similar to calling [] counsels liars, and accusing . . . counsels of perpetrating a fraud upon the court and jury," *see Owens Corning Fiberglas Corp.*, 653 So. 2d at 411, (ii) comments are made explicitly referring to counsel as liars, *see Nolasco*, 318 So. 3d 584, and/or (iii) a personal attack is lodged against counsel, *see Redish v. State*, 525 So. 2d 928, 931 (Fla. 1st DCA 1988) (stating that the

plaintiff went beyond the bounds of a proper closing argument when they referred to the defense's "cheap tactics" and stated that "jurors with good common sense won't fall for these tricks").

In the case at bar, counsel for ASCENDANT COMMERCIAL INSURANCE, INC. did not refer to Plaintiffs' counsel as liars, she did not make comments similar to calling counsel liars, and she did not make a personal attack against counsel. Rather, counsel for ASCENDANT COMMERCIAL INSURANCE, INC. pointed out that although the jury would receive twenty-seven pieces of evidence, most of the materials were red herrings and/or distractions because such materials were biased and/or intended to evoke an emotional response. Thus, taken in context, the remarks made by counsel for ASCENDANT COMMERCIAL INSURANCE, INC. were not tantamount to an attack on the integrity of Plaintiffs' counsel. In fact, there were no accusations whatsoever of lying, fabrication, fraud, or trickery; whereas the foregoing sound in deceit, issue confusion (which is what counsel for ASCENDANT COMMERCIAL INSURANCE, INC. raised) does not. Read in context, the challenged remarks urged the jury to remain focused on the issues and to view the evidence accordingly. This is well within the confines of permissible closing argument.

Ultimately, applying the four-part *Murphy* test, the challenged statements were not improper, and they were not harmful. Even looking beyond this, it cannot be said that if a contemporaneous objection had been made, "curative measures could not have eliminated the probability that the unobjected-to argument resulted in an improper verdict." *See Jimenez*, 112 So. 3d at 522. Finally, it cannot be said that but for the challenged comments,

the jury would have decided the case differently. *See id.* at 519 ("[A] new trial will only be warranted when the improper behavior is 'of such a nature as to reach into the validity of the trial itself to the extent that the verdict could not have been obtained but for such comments.'").

Simply stated, no fundamental error occurred in this case. Fatal to Plaintiffs' position, they have failed to show that the verdict did not accord with the evidence presented at trial. *See id.* at 521 (reversing an order for new trial and observing that, "[b]ecause there was ample evidence in the record from which the jury might have reached the verdict complained of, [the plaintiff] ha[d] failed to establish that defense counsel's conduct and comments were harmful"). Hence, Plaintiffs have failed to discharge their burden in showing that the verdict could not have been obtained but for the complained-of remarks made in closing argument. As summarized above, the jury's verdict accorded with the evidence.

CONCLUSION

For the foregoing reasons, Appellees/Defendants, EDWARD ORJUELA TAYLOR and ASCENDANT COMMERCIAL INSURANCE, INC., respectfully request that this Court affirm as to all matters.

Respectfully submitted,

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CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the font and word count requirements of Florida Rules of Appellate Procedure 9.045 and 9.210(a)(2)(B). This brief is computer-generated, is set in Arial 14-point font, and contains 12419 words, excluding the parts of the document exempted by Rule 9.045(e).

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CERTIFICATE OF SERVICE

I certify that a copy hereof has been furnished by e-mail on October 16, 2026, to the attorneys on the service list: Todd L. Wallen, Esq. (twallen@wallenkelley.com) and Patrick S. Montoya, Esq. (pmontoya@thewcmfirm.com), Wallen Kelley and Milberg, Coleman, Bryson, Phillips & Grossman, LLC, attorneys for Plaintiffs/Appellants, Arkady Kane and Ada Kane; and Anita Tamayo Figueroa, Esq.

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